

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-16

IWG INTERNATIONAL WOOD GROUP OF SC AND HONEST

TRADING *Complainants*

VERSUS

DB SCHENKER USA, INC.
Respondent

COMPLAINANT'S INITIAL DISCLOSURES

COMES NOW, Complainants, IWG International Wood Group of SC and Honest Trading International LLC, and pursuant to Federal Rule of Civil Procedure 26(a)(1)(A)-(D), provides its initial disclosures and states as follows:

Rule 26(a)(1)(A)(i)—(Witnesses)

1. Complainants' Internal Team (IWG / Honest Trading):

- Steven Craig Swilley: (IWG) 255 Ridgeville Rd, Ridgeville, SC 29472. Information on general management, financial losses, and direct communications with Respondents.
- March Marande: (IWG) 255 Ridgeville Rd, Ridgeville, SC 29472. Information on specific documentation errors, log volume calculations, and daily operations.
- Josh Fox: (IWG) Information regarding booking coordination, vessel schedule changes, and ERD monitoring.

- Shonna Lu: (Drayage Specialist) Information regarding container movements, empty out-gates, and full returns.
- Ngai Arthur: (Big Brother USA) Information regarding equipment and booking logistics.
- Travis Berry: (Big Brother USA) Information regarding schedule monitoring and ERD updates.
- Brandon Shum (Jon): (Big Brother USA) Information regarding direct email communications with Respondent and dispute handling.
- Booking Desk Big Brother USA: Information regarding original booking instructions and vessel confirmations.
- Representative of Honest Trading International LLC: Information regarding joint trade operations and financial impacts.
- Complainants' Finance/Accounting Department and Amanda Chubb: Information regarding invoice payments, wire transfers, and calculations of financial losses.

2. Respondent (DB Schenker) Representatives:

- Genta Seseri-Sina: Manager, Compliance. Facts and circumstances of the subject litigation.
- John Tanriver: Facts and circumstances of the subject litigation.
- Diana Soldatovic: Information regarding account management and service failures.
- Lavinia Haid: Information regarding operational oversight.
- Diane Chun: Information regarding shipment handling and documentation errors.
- Kevin Bennett: Information regarding management and escalation of Complainant concerns.

- Teresa Goude / Adam Fogle: Information regarding specific booking management and communication delays.
- Tiffany Retzer / Josie Veloso / Barbara Hammond: Information regarding documentation processing and customer service interactions.
- Chicago Branch Ocean Exports (Archive Team): Information regarding historical documentation and archived communication records.

3. Financial Institutions (East West Bank):

- Doris Yu / Jenny Lin / Trade Export Team 2: Information regarding Letter of Credit (LC) requirements, documentation discrepancies, and bank-to-bank routing violations.

4. Ocean Carriers (Shipping Lines):

- Wilma McCord and Michelle Keller: (Ocean Network Express) Facts and circumstances regarding specific shipment handling and export documentation handling.
- Tiffany Lin / Richard Ip / Houston Document Team: (Yang Ming) Information regarding Bill of Lading issuance, Original Bill of Lading (OBL) status, misrouting, and telex release issues.

5. Buyers / Customers (Consignees):

- PENG HANXING / Akshay Kumar / Sanjay / Overseas Timber Corporation (Kirti Parekh / Kirti Lakdawala / Haridas Nair): Information regarding cargo arrival delays, documentation revisions and rejection, and payment term changes, pending demurrage/detention charges and price reductions granted to prevent cancellation.

Rule 26(a)(1)(A)(ii)—(Categories of Documents)

Complainants possess documents in the following categories:

1. Financial Records: Comprehensive Balance Sheet showing a total loss of \$803,997.98
2. Shipping Documents: Booking Confirmations, Drafts, original and revised Bills of Ladings, Shipping Label of Set of Documents, Packing Lists, Commercial Invoices and Log Lists.
3. Regulatory Records: USDA Phytosanitary Certificates and Certificates of Origin.
4. Banking Records: Letter of Credit instructions and notices of discrepancy/expiration.
5. Correspondence: Email threads with DB Schenker, Yang Ming, and ONE regarding schedule changes and document errors.
6. Cancellation Document or Termination of Contract between Complainants and Buyers

Rule 26(a)(1)(A)(iii)—(Computation of Damages)

Complainants claim total reparations in the amount of \$803,997.98. This includes:

- Booking YHU25912863: \$70,479.58 (Loss of goods value + destination charges).
- Booking YHU25912853: \$54,875.72 (Hefty detention/demurrage due to document delays).
- Booking YHU25912806: \$20,005.14 (Cargo abandonment loss).
- Booking RICFE2007400: \$4,400.00 (Price reductions and destination charges).
- Demurrage Invoice Differences: \$4,237.54.
- Buyer BNBMG termination of contract with Contract Value of \$3,595,200 with \$650,00 estimated profit from this contract.

Rule 26(a)(1)(iv)—(Insurance)

Not applicable to Complainants at this time.

Discovery is ongoing, and Complainants specifically reserve the right to supplement these Initial Disclosures.

Dated: December 22, 2025

Respectfully submitted,

IWG International Wood Group of SC Honest Trading International LLC